

Tentative Ruling on Motion to Compel Further, Complete and Code-Compliant Responses:

Moving Defendants request an order compelling Plaintiffs to provide further responses to Form Interrogatories and Requests for Production pursuant to CCP § 2030.210 and 2031.300. Moving Defendants served discovery on the numerous Plaintiffs but brought a combined motion as to all Plaintiffs related to purported common defects in their responses. Moving Defendants also request monetary sanctions in the amount of \$3,500.

Merits of Motion. A party may move for an order compelling further responses to form interrogatories and requests for production if the responses provided were deficient. CCP §§ 2030.300(a) and 2031.310(a). Here, Moving Defendants have identified multiple form interrogatories and request for production that they contend require further responses. After the current motion was filed, Plaintiffs provided further responses. Accordingly, the request to compel further responses is moot. If Moving Defendants determine that the further responses remain deficient, they can always file a new motion related to the further responses after participating in the statutorily required meet and confer process.

Sanctions. A party that successfully makes or opposes a motion to compel further response is entitled to mandatory monetary sanctions unless the party subject to sanctions acted with substantial justification or the imposition of sanctions would be unjust. CCP § 2030.300(d) & 2031.310(h). Sanctions can be imposed even if further responses are provided after a discovery motion is filed. CRC 3.1348(a). Motions to compel further responses must generally be supported by a meet and confer declaration. CCP § 2030.300(b) & CCP § 2031.310(b)(2). A meet and confer declaration must “state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” CCP § 2016.040. The declaration of David Ries filed in support of the motion provides the conclusory statement that the parties have “engaged in robust meet-and-confer efforts.” No specific facts are provided. No copies of meet and confer correspondence were filed with the moving papers. Moving Defendants have failed to provide a sufficient meet and confer declaration that is required to support a motion to compel further responses. Based on the deficient meet and confer declaration, the Court finds that the imposition of sanctions would be unjust.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WISER, ET AL. VS. GENERAL MOTORS, LLC

Case Number: 25CV-0207048

Tentative Ruling on Demurrer: This matter is on calendar for hearing on Defendant GM’s Demurrer to the Complaint, filed June 12, 2025. On July 23, 2025, Plaintiff filed a First Amended Complaint. This is permitted per CCP § 472(a) and renders the Demurrer moot. The Court notes that the FAC was filed one day past the date for filing an opposition to the demurrer. However, proof of service indicates timely notice, so Defendant is not prejudiced. The Court will accept the late filing and drop the matter from calendar. No appearances are necessary.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of